

MEGALODOME GOLF

THE NEXT REVOLUTION™

Mutual NDA

Non-disclosure & non-circumvention template

Tier 2 — Execute before data room
MEGALODOME GOLF Equity Fund I LLC · Chicago West (Oswego, IL) · Reg D 506(c)

MEGALODOME GOLF Mutual Non-Disclosure & Non-Circumvention Agreement This Mutual Non-Disclosure & Non-Circumvention Agreement (“Agreement”) is made as of [Date] between MEGALODOME GOLF Inc. and its affiliate MEGALODOME GOLF Equity Fund I LLC (together, the “Company”), and [Counterparty / Prospective Investor name] (“Counterparty”). The Company and Counterparty are each a “Party” and together the “Parties.”

- Purpose

The Parties wish to explore a possible investment by Counterparty in the Company’s private offering of securities conducted under Rule 506(c) of Regulation D (the “Purpose”). In connection with the Purpose, each Party (as “Discloser”) may share confidential information with the other (as “Recipient”).

- Confidential Information

“Confidential Information” means non-public information disclosed by or on behalf of a Discloser, in any form and whether or not marked “confidential,” including the financial model and projections, capital structure and waterfall, the private placement memorandum and offering terms, course-design and facility IP, site and development plans, vendor, lender and partner identities and terms, letters of intent and member agreements, business and marketing plans, and the contents of any data room.

- Obligations

Recipient shall: (a) use Confidential Information solely for the Purpose; (b) protect it with at least the care it uses for its own confidential information, and no less than reasonable care; and (c) disclose it only to its directors, officers, employees, and professional advisors who need to know it for the Purpose and who are bound by confidentiality obligations no less protective than these (“Representatives”). Recipient is responsible for any breach by its Representatives.

- Exclusions

Confidential Information does not include information that: (a) is or becomes public other than through Recipient’s breach; (b) was lawfully known to Recipient without restriction before disclosure; (c) is independently developed by Recipient without use of the Confidential Information; or (d) is lawfully received from a third party without restriction.

- Compelled Disclosure

If Recipient is legally compelled to disclose Confidential Information, it shall (to the extent permitted) give the Discloser prompt notice and reasonable cooperation so the Discloser may seek protection, and shall disclose only the portion legally required.

- Non-Circumvention

For [twenty-four (24)] months from the date hereof, Counterparty and its Representatives shall not circumvent the Company to deal directly with any landowner, course architect (including Huxham Golf Design), lender, vendor, operator, or other counterparty first identified to Counterparty through the evaluation, for the purpose of pursuing the same or a substantially similar opportunity, without the Company’s prior written consent.

- Non-Solicitation

For [twelve (12)] months, Counterparty shall not solicit for employment or engagement any named member of the Company's management team or key partners introduced in connection with the Purpose. General advertising not targeted at such persons is not a breach.

- No Offer; Securities Notice

This Agreement is not, and nothing exchanged under it is, an offer to sell or a solicitation of an offer to buy any security. Any offering is made solely through the Company's Confidential Private Placement Memorandum and subscription documents under Rule 506(c) of Regulation D, and is limited to verified accredited investors. All projections shared are modeled estimates, not guarantees.

- No License; No Obligation

No license or other right in any intellectual property is granted by disclosure. Nothing in this Agreement obligates either Party to proceed with any transaction, and each Party may terminate discussions at any time.

- Return or Destruction

Upon the Discloser's written request, Recipient shall return or destroy the Confidential Information and certify the same, except for one archival copy retained for compliance and copies in routine backups, which remain subject to this Agreement.

- Term & Survival

This Agreement remains in effect for [two (2)] years; confidentiality obligations survive for [three (3)] years from the date of disclosure (or, for trade secrets, for as long as they remain trade secrets under applicable law).

- Remedies

The Parties agree that money damages may be inadequate for a breach and that the non-breaching Party is entitled to seek injunctive and other equitable relief, in addition to any other remedies at law or equity, without the necessity of posting a bond.

- Governing Law & Venue

This Agreement is governed by the laws of [State of Illinois / Delaware], without regard to conflicts of law, and the Parties consent to venue in [County/State].

- Miscellaneous

This Agreement is the entire understanding on its subject matter and supersedes prior discussions; it may be amended only in writing signed by both Parties; no waiver is implied by any failure to enforce; it may not be assigned without consent (except to an affiliate or in a corporate reorganization); and it may be executed in counterparts, including by electronic signature. If any provision is unenforceable, the remainder stays in effect. Agreed and accepted: DRAFT for discussion only — not legal advice. Bond Conway Law to review, complete bracketed terms, set governing law, and approve before any use. Bracketed durations are placeholders.

[Table 1]

MEGALODOME GOLF INC. / FUND I LLC By: _____ Name / Title: [] Date: [] |
COUNTERPARTY By: _____ Name / Title: [] Date: []

CONFIDENTIAL — for accredited investors only. Not an offer to sell or a solicitation to buy any security. Any offering is made solely through the Confidential Private Placement Memorandum of MEGALODOME GOLF Equity Fund I LLC and its subscription documents under Rule 506(c) of Regulation D. Projections are modeled estimates, not guarantees; actual results will differ. Equity classes and waterfall figures may be illustrative and subject to counsel review.